

Tamil Nadu Police Laws (Amendment and Validation) Act, 1979

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State of Tamilnadu- Act

Tamil Nadu Police Laws (Amendment and Validation) Act, 1979

TAMILNADU

India

Tamil Nadu Police Laws (Amendment and Validation) Act, 1979

Act 49 of 1979

Published on 29 November 1979

Commenced on 29 November 1979

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Tamil Nadu Police Laws (Amendment and Validation) Act, 1979

(Tamil Nadu Act

49 of 1979

)

Statement of Objects and Reasons - Tamil Nadu Police Laws (Amendment and Validation) Act, 1979 (Tamil Nadu Act 49 of 1979

). - The Police Department was trifurcated with effect from the 1st June 1979. Three Inspectors-General had been appointed to be in-charge of Crime and Law and Order, Enforcement and Armed Police. A new post of Director-General of Police had also been created to be the new head of the Police Department. Hence, it was considered necessary to amend the Tamil Nadu District Police Act, 1859 (Central Act XXIV of 1859) and the Madras City Police (Amendment) Act, 1907 (Tamil Nadu Act III of 1907) with effect from the 1st June 1979 so as to bring the new post of Director-General

of Police within the preview of the said Acts. Accordingly, the Tamil Nadu Police Laws (Amendment and Validation) Ordinance, 1979 (Tamil Nadu Ordinance 19 of 1979) was promulgated by the Governor.

2. The Bill seeks to replace the said Ordinance.

Published in Part IV - Section 1, Page 448 of the Tamil Nadu Government Gazette Extraordinary, dated the 5th November 1979.

Received the assent of the Governor on the 29th November 1979 and first published in Part IV - Section 2 of the Tamil Nadu Government Gazette Extraordinary, dated the 3rd December 1979.

An Act further to amend the Police Laws in force in the State of Tamil Nadu. Be it enacted by the Legislature of the State of Tamil Nadu in the Thirtieth Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the Tamil Nadu Police Laws (Amendment and Validation) Act, 1979.

(2)

(a)

The provisions of this Act except section 5 shall be deemed to have come into force on the 1st June 1979.

(b)

Section 5 shall be deemed to have come into force on the 13th October 1979.

2.

Amendment of Central Act XXIV of 1859.

- In the Tamil Nadu District Police Act, 1859 (Central Act XXIV of 1859),-

(1)

in section 1, in the definition of "superior police" for the expression "the Inspector-General of Police", the expression "the Director-General of Police, Inspectors-General of Police" shall be substituted;

(2)

in section 5, -

(a)

for the marginal heading, the following marginal heading shall be substituted, namely: -

"Director-General of Police, etc.";

(b)

for the expression "Inspector-General of Police for the State of Tamil Nadu", the expression "Director-General of Police for the State of Tamil Nadu" shall be substituted;

(3)

section 7 and the marginal heading relating thereto shall be omitted;

(4)

in section 9, -

(a)

in the marginal heading, for the expression "Inspector-General", the expression "Director-General" shall be substituted;

(b)

for the expression "Inspector-General" in both the places where it occurs, the expression "Director-General" shall be substituted;

(5)

in section 10, for the expression "the Inspector-General", the expression "the Director-General of Police, Inspectors-General of Police" shall be substituted;

(6)

in section 11, for the expression "Inspector-General", the expression "Director-General of Police" shall be substituted;

(7)

in section 12, for the expression "the Inspector-General of Police", the expression "the Director-General of Police or the Inspector-General of Police" shall be substituted;

(8)

in section 13, for the expression "the Inspector-General" in both the places where it occurs, the expression "the

Director-General of Police or Inspector-General" shall be substituted;

(9)

in section 14, for the expression "the Inspector-General" in both the places where it occurs, the expression "the Director-General of Police" shall be substituted;

(10)

in section 19, for the expression "the Inspector-General", the expression "the Director-General of Police" shall be substituted;

(11)

in section 45, for the expression "the Inspector-General", the expression "the Director-General of Police" shall be substituted;

3.

Amendment of Tamil Nadu Act III of 1907.

- In the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

City Police (Amendment) Act, 1907 (Tamil Nadu Act III of 1907), -

(a)

in the long title, for the expression "the Inspector-General of Police", the expression "the Director-General of Police" shall be substituted;

(b)

in the preamble, for the expression "the Inspector-General", the expression "the Director-General" shall be substituted;

(c)

in section 2 and in the marginal heading thereto, for the expression "the Inspector-General", the expression "Director-General" shall be substituted;

(d)

in section 3, for the expression "Inspector-General of Police", the expression "Director-General of Police" shall be substituted.

4.

Construction of reference.

- Unless the context otherwise requires, in any enactment other than the Tamil Nadu District Police Act, 1859 (Central Act XXIV of 1859) or the 1[Chennai] City Police (Amendment) Act, 1907 (Tamil Nadu Act III of 1907), any reference to the Inspector-General of Police shall be construed as a reference to the Director-General of Police.

5.

Validation.

- Anything done or any action taken by the Director-General of Police before the 13th October 1979 which, under any law, is required to be done or taken by the Inspector-General of Police, shall, for all purposes, be deemed to be, and to have always been, validly done or taken in accordance with law as if this Act had been in force at all material times and it shall not be liable to be questioned in any Court of law.

6.

Repeal and saving.

(1)

The Tamil Nadu Police Laws (Amendment) and Validation) Ordinance, 1979 (Tamil Nadu Ordinance 19 of 1979) is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the Police Laws as amended by the said Ordinance shall be deemed to have been done or taken under the Police Laws as amended by this Act.

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